



Vernon's Texas Statutes and Codes Annotated
Property Code (Refs & Annos)
Title 8. Landlord and Tenant (Refs & Annos)
Chapter 92. Residential Tenancies (Refs & Annos)
Subchapter B. Repair or Closing of Leasehold (Refs & Annos)

V.T.C.A., Property Code § 92.056

§ 92.056. Landlord Liability and Tenant Remedies; Notice and Time for Repair

Currentness

(a) A landlord's liability under this section is subject to [Section 92.052\(b\)](#) regarding conditions that are caused by a tenant and [Section 92.054](#) regarding conditions that are insured casualties.

(b) A landlord is liable to a tenant as provided by this subchapter if:

(1) the tenant has given the landlord notice to repair or remedy a condition by giving that notice to the person to whom or to the place where the tenant's rent is normally paid;

(2) the condition materially affects the physical health or safety of an ordinary tenant;

(3) the tenant has given the landlord a subsequent written notice to repair or remedy the condition after a reasonable time to repair or remedy the condition following the notice given under Subdivision (1) or the tenant has given the notice under Subdivision (1) by sending that notice by certified mail, return receipt requested, by registered mail, or by another form of mail that allows tracking of delivery from the United States Postal Service or a private delivery service;

(4) the landlord has had a reasonable time to repair or remedy the condition after the landlord received the tenant's notice under Subdivision (1) and, if applicable, the tenant's subsequent notice under Subdivision (3);

(5) the landlord has not made a diligent effort to repair or remedy the condition after the landlord received the tenant's notice under Subdivision (1) and, if applicable, the tenant's notice under Subdivision (3); and

(6) the tenant was not delinquent in the payment of rent at the time any notice required by this subsection was given.

(c) For purposes of Subsection (b)(4) or (5), a landlord is considered to have received the tenant's notice when the landlord or the landlord's agent or employee has actually received the notice or when the United States Postal Service has attempted to deliver the notice to the landlord.

(d) For purposes of Subsection (b)(3) or (4), in determining whether a period of time is a reasonable time to repair or remedy a condition, there is a rebuttable presumption that seven days is a reasonable time. To rebut that presumption, the date on which the landlord received the tenant's notice, the severity and nature of the condition, and the reasonable availability of materials and labor and of utilities from a utility company must be considered.

(e) Except as provided in Subsection (f), a tenant to whom a landlord is liable under Subsection (b) of this section may:

(1) terminate the lease;

(2) have the condition repaired or remedied according to [Section 92.0561](#);

(3) deduct from the tenant's rent, without necessity of judicial action, the cost of the repair or remedy according to [Section 92.0561](#); and

(4) obtain judicial remedies according to [Section 92.0563](#).

(f) A tenant who elects to terminate the lease under Subsection (e) is:

(1) entitled to a pro rata refund of rent from the date of termination or the date the tenant moves out, whichever is later;

(2) entitled to deduct the tenant's security deposit from the tenant's rent without necessity of lawsuit or obtain a refund of the tenant's security deposit according to law; and

(3) not entitled to the other repair and deduct remedies under [Section 92.0561](#) or the judicial remedies under [Subdivisions \(1\) and \(2\) of Subsection \(a\) of Section 92.0563](#).

(g) A lease must contain language in underlined or bold print that informs the tenant of the remedies available under this section and [Section 92.0561](#).

Credits

Acts 1983, 68th Leg., p. 3635, ch. 576, § 1, eff. Jan. 1, 1984. Amended by [Acts 1989, 71st Leg., ch. 650, § 5, eff. Aug. 28, 1989](#); [Acts 1997, 75th Leg., ch. 1205, § 11, eff. Jan. 1, 1998](#); [Acts 2007, 80th Leg., ch. 917, § 5, eff. Jan. 1, 2008](#); [Acts 2015, 84th Leg., ch. 1198 \(S.B. 1367\), § 4, eff. Jan. 1, 2016](#).

Notes of Decisions (14)

O'CONNOR'S NOTES

Source: TRCS [art. 5236f, §§3, 5, 6, 10](#).

O'CONNOR'S CROSS REFERENCES

See also [Prop. Code §92.166](#); *O'Connor's Texas COA*, “Tenant’s elements,” ch. 16-F, §2.

O'CONNOR'S ANNOTATIONS

[American Campus Cmty., Inc. v. Berry](#), 667 S.W.3d 277, 280 (Tex.2023). See annotation under [Property Code §92.0563](#).

[Waldon v. Williams](#), 760 S.W.2d 833, 835 (Tex.App.--Austin 1988, no writ). P argues that the application of §92.056(b) “is not limited to prospective relief and that, because it authorizes a reduction from the time of the second repair notice, it does not preclude an award of damages pursuant to §92.056(b)(4). [¶] By its own terms, the reduction in rent under §92.056(b)(2) is

prospective because it runs from the trial court's entry of an order. The section does not address damages suffered, if any, before the entry of an order. Thus, the statute includes a provision for actual damages to compensate the tenant for injury suffered for the landlord's failure to repair. Having found that appellant was damaged and the amount of actual damages, pursuant to a correct measure of damages, the trial court erred in not awarding the damages. Furthermore, the statute allows a tenant to obtain 'one or more' of the five remedies listed."

V. T. C. A., Property Code § 92.056, TX PROPERTY § 92.056

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